

{court} — {county} COUNTY, COMMONWEALTH OF KENTUCKY {caseNumberLine}

JAMIE Q. SAMPLE,
Applicant.

DOCKET NO.: [TO BE CONFIRMED]

APPLICATION FOR ORDER OF SEGREGATION OF RECORDS PURSUANT TO KRS 17.142

STATUTORY AUTHORITY

KRS 17.142(2) — The person may apply to the court, upon receipt of which the court shall forthwith issue an order to all law enforcement agencies.

KRS 17.142(1) — The substantive condition the application rests on: the person was found innocent, or all charges relating to the offence were dismissed or withdrawn.

KRS 17.142(3) — What the order reaches: each agency segregates the records into a file separate and apart from those of convicted persons, must notify every agency it shared the records with, and the segregated record must show the disposition of the case.

KRS 17.142(4) — The limit on scope: records subject to KRS 431.076 or KRS 431.078 are sealed under those statutes instead. Carried so the application does not reach records that belong elsewhere.

I. JURISDICTION AND VENUE

1. This Court has jurisdiction over this matter as the EXAMPLE County, Kentucky court in which the case was or would have been tried, where the proceedings occurred.
2. Venue is proper in this Court because the criminal proceedings that are the subject of this application occurred in EXAMPLE County, Kentucky.

II. PARTIES

3. Applicant is JAMIE Q. SAMPLE, whose address is 000 EXAMPLE STREET, EXAMPLE CITY, KY 00000.
4. Applicant has also been known as: J. Q. SAMPLE.

III. FACTS AND CASE HISTORY

5. Applicant was charged with [PARTICIPANT'S OWN DESCRIPTION OF WHAT THEY WERE ARRESTED FOR] by [ARRESTING AGENCY TO BE CONFIRMED]. [ARREST DATE TO BE CONFIRMED]
6. The matter was assigned Docket Number [TO BE CONFIRMED].
7. The matter was resolved with the following disposition: [DISPOSITION TO BE CONFIRMED]. [DISPOSITION DATE TO BE CONFIRMED]

IV. ELIGIBILITY ALLEGATIONS

8. Applicant may be eligible for segregation on the following basis: [ELIGIBILITY BASIS TO BE CONFIRMED].

IMPORTANT: Applicant may be eligible; this document does not guarantee eligibility or a court outcome.

V. REQUESTED RELIEF

WHEREFORE, Applicant respectfully requests that this Court:

- (a) Grant this Application and enter an Order directing the segregation of the arrest records, fingerprints, photographs and other data relating to the arrest identified in this application, held by law enforcement and other public agencies in the above-captioned matter;
- (b) Direct all criminal justice agencies having custody of such records to segregate all records relating to this matter; and
- (c) Grant such other and further relief as this Court deems just and appropriate.

VI. VERIFICATION

JAMIE Q. SAMPLE
000 EXAMPLE STREET, EXAMPLE CITY, KY 00000

Date: _____

[NOTE: Date of birth and Social Security Number should be added by applicant if required by the applicable form or local court rules.]

Prepared by applicant using LegalEase RCAP. This is not an official court form.